

15th City Council
18th Regular Session
Series of 2007

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod

PRESENT:

Councilor	Myrna G.L. Dalodo-Ortiz	- Acting Presiding Officer
Councilor	Nilo G. Abellera	
Councilor	Victorio S. Advincula	
Councilor	Wilberto E. Al-ag	
Councilor	Dante L. Apostol Sr.	
Councilor	Leonardo R. Avila III	
Councilor	Conrado C. Baluran	
Councilor	Samuel B. Bangoy	
Councilor	Karlo S. Bello	
Councilor	Louie John J. Bonguyan	
Councilor	Pilar C. Braga	
Councilor	Danilo C. Dayanghirang	
Councilor	Edgar R. Ibuyan	
Councilor	Peter T. Laviña	
Councilor	Diosdado Angelo A. Mahipus Sr.	
Councilor	Amilbangsa T. Manding	
Councilor	Teresita C. Mata-Marañon	
Councilor	Bonifacio E. Militar	
Councilor	Tomas J. Monteverde IV	
Councilor	Susan Isabel C. Reta	
Councilor	Angela A. Librado-Trinidad	
Councilor	Jose Louie P. Villafuerte	
Councilor	Rachel P. Zozobrado	

ON OFFICIAL BUSINESS:

Councilor	April Marie C. Dayap	- Manila
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ABSENT:

Vice Mayor	Sara Z. Duterte	- On Vacation Leave
Councilor	Ma. Belen S. Acosta	- On Vacation Leave
Councilor	Arnolfo Ricardo B. Cabling	- On Special Privilege Leave

ORDINANCE NO. 029-07/02/11-07
Series of 2007

**AN ORDINANCE PRESCRIBING GUIDELINES IN
THE REGISTRATION OF BUSINESS
ESTABLISHMENTS WITH FOREIGN NATIONALS
IN DAVAO CITY AND FOR OTHER PURPOSES**

Be it Ordained by the Sangguniang Panlungsod of Davao City in session assembled, that:

SECTION 1. TITLE OF THE ORDINANCE – This Ordinance shall be known as **"THE FOREIGN NATIONALS BUSINESS REGISTRATION ORDINANCE OF DAVAO CITY"**;

SECTION 2. DEFINITION OF TERMS – For purposes of this Ordinance, the following terms shall be defined as follows:

1. **Business** – trade or commercial activity regularly engaged in as means of livelihood with a view of profit. For purposes of this Ordinance, business shall include business enterprises which are wholly owned by foreign nationals or where foreign nationals are part of the partnership as partners or part of the corporation as incorporators or board of directors. It shall also include businesses which employ foreign nationals.
2. **Student Visa** – a visa issued by the Bureau of Immigration and Deportation (BID), changing the status from tourist (9a) to student (9f), providing an *eighteen (18) year old and above foreign student taking up degree courses, a temporary residency in the Philippines for the duration of his/her studies, provided, that the required period of extension is complied with.*
3. **Special Student Permit** – a permit issued to foreign student below eighteen (18) years of age, for those who plan to take up non-degree courses for a specific period of time, not exceeding one (1) school year,
4. **Alien Employment Permit** – a document issued by the Secretary of Labor and Employment, through the Regional Director, authorizing a non-resident *foreign national to work in the Philippines,*
5. **Special Investor's Resident Visa** – a visa issued by the Board of Investment (BOI), permitting and authorizing foreign nationals to engage in business.

SECTION 3. REGISTRATION PROCEDURE – Subject to existing laws and ordinances, foreign nationals who are allowed under Philippine Law to engage in business shall register the same using the guidelines hereunder listed:

1. Foreign nationals must have the corresponding visa (business or investors' visa) in order to engage in business in Davao City. Those with tourist visas may apply for business permits and engage in business provided they apply for a special investor's resident visa with the Board of Investment (BOI). The copy of the approved special investor's resident visa from the Head Office shall be submitted to the Office of the Business Bureau within ninety (90) days after issuance of the business permit. Those with Student Visas or Special Student Permits are prohibited from engaging in business.
2. Foreign nationals shall apply for their Taxpayers Identification Number (TIN) with the Bureau of Internal Revenue (BIR).
3. For partnerships and corporations, applicants shall apply for the registration of their Articles of Partnership/Corporation with the Securities and Exchange Commission (SEC).

4. For sole proprietorship, provided foreign nationals are allowed by law, applicants shall apply for registration with the Department of Trade and Industry (DTI).
5. Application with the Office of the City Mayor under the Office of the Business Bureau with the following requirements:

Common Requirements:

1. Duty Accomplished Form (BB Form 1)
 2. Certificate of Registration from SEC (Photocopy)
 3. Articles of Incorporation/Partnership (Photocopy)
 4. Current Year Community Tax Certificate (Original)
 5. Certificate of Tax Exemption, if any, (Photocopy)
 6. Certificate of Registration with DTI (Photocopy)
 7. Barangay Clearance where business is located (Original)
 8. Authorization letter/Special Power of Attorney with photocopied ID of the person authorized to transact and photocopied ID of the taxpayer/applicant
 9. Other requirements depending on the kind or nature of business
 10. FOR FOREIGN NATIONALS:
 - a. Certified Photocopy of Passport
 - b. Certified Photocopy of Visa
 - c. Alien Employment Permit which may be submitted within ninety (90) days after issuance of the business permit
6. Foreign nationals must apply for an Alien Employment Permit with the Department of Labor and Employment (DOLE).

SECTION 4. PROHIBITED ACT – It shall be unlawful for any business entity to engage in business without the required business permit issued by the Business Bureau. Prior to the start of operations, said business entity shall first secure a business permit and pay the corresponding fees and taxes therein;

SECTION 5. PENALTY CLAUSE – Any person or persons who violate any of the provisions of this Ordinance not herein otherwise covered by any specific penalty or who shall otherwise violate the rules or regulations promulgated under authority of this Ordinance shall, upon conviction, be punished by a fine of not less than One Thousand Pesos (P1,000.00) nor more than Five Thousand Pesos (P5,000.00), or imprisonment of not less than one (1) month nor more than six (6) months, or both at the discretion of the court.

If the violation is committed by any juridical entity, the President, General Manager, or the individual entrusted with the administration thereof at the time of the commission of the violation shall be held responsible or liable thereof.

Punishment by a fine or imprisonment as herein provided for shall not relieve the offender from the payment of the tax, fee or charge imposed under this Ordinance.

SECTION 6. CREATION OF INTER-AGENCY TASK FORCE – An Inter-Agency Task Force shall be created to monitor the business enterprise of foreign nationals which shall be composed of the following:

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|-------------------------|---|
| Chairperson | - MAYOR RODRIGO R. DUTERTE or his authorized representative |
| Vice Chairperson | - Director, Bureau of Immigration and Deportation |
| Members | - Director, National Bureau of Investigation |
| | Director/Chief, PhilHealth Office |
| | Director/Chief, Social Security System |
| | Director/Chief, Bureau of Internal Revenue |
| | Director/Chief, Securities and Exchange Commission |
| | Director/Chief, Department of Labor and Employment |
| | Director/Chief, Philippine National Police |
| | Director/Chief, Department of Trade and Industry |
| | Director/Chief, Bureau of Customs |
| | Chief, Business Bureau |

SECTION 7. FUNCTIONS OF THE INTER-AGENCY TASK FORCE -

The following are the functions of the Inter-Agency Task Force:

1. Formulate policies to serve as guidelines for the registration of business establishments with foreign nationals;
2. To conduct monitoring activities and ocular inspections in order to determine whether the foreign nationals are complying with the law;
3. To recommend to the City Mayor, through the Business Bureau, the closure of any establishment with foreign nationals found violating any law or ordinance;
4. To recommend to the Bureau of Immigration the deportation of any foreign national found violating any law or ordinance.
5. To determine the monthly honoraria for the members of the task force.

SECTION 8. SECRETARIAT - The personnel who will act as Secretariat of the accrediting body shall be composed of one (1) Legal Officer from the City Legal Office and four (4) employees of the Business Bureau. The Secretariat shall be appointed by the Task Force upon recommendation of the City Legal Officer and the Chief of the Business Bureau, respectively;

SECTION 9. FUNDING - Funding for the necessary operational and incidental expenses of the Task Force shall be provided out of the annual budgetary appropriation as recommended by the City Mayor;

SECTION 10. SEPARABILITY CLAUSE - If for any reason, any section of the Ordinance is declared unconstitutional or invalid, other sections or provisions hereof which are not affected thereby shall continue to be in full force and effect;

SECTION 11 - EFFECTIVITY CLAUSE - This Ordinance shall take effect after its publication in a newspaper of local circulation within the territorial jurisdiction of this City, and shall be posted at prominent places at City Hall for a minimum period of three (3) consecutive weeks, consistent with the provisions of the Local Government Code, as amended.

ENACTED, November 13, 2007, by a majority vote of all the Members of the Sangguniang Panlungsod.

(NOTE: Councilors Pilar C. Braga and Dante L. Apostol Sr. were out when this ordinance was approved.)

CERTIFIED CORRECT:

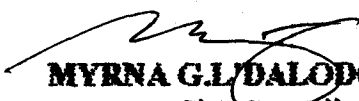


ZULEIKA T. LOPEZ

Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

uw
11/21/07

ATTESTED:



MYRNA G.L. DALODO-ORTIZ

City Councilor
Acting Presiding Officer
/s/

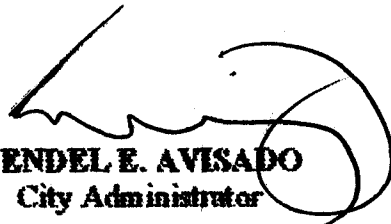
APPROVED: JAN 03 2008.



RODRIGO R. DUTERTE

City Mayor

ATTESTED:



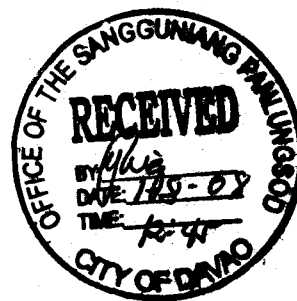
WENDEL E. AVISADO

City Administrator



Republic of the Philippines
OFFICE OF THE CITY MAYOR
City of Davao

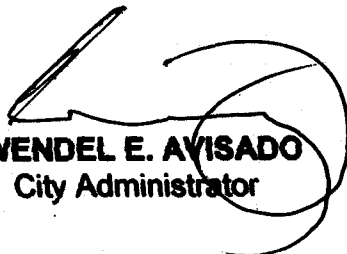
Ref. No. 1011-08



2nd Indorsement
January 7, 2008

Respectfully returned for information, guidance and appropriate action to the Office of the Sangguniang Panlungsod, thru Atty. Zuleika T. Lopez, Secretary to the Sangguniang Panlungsod, this city, the herein attached duly approved Ordinance No. 029-07, Series of 2007, known as an Ordinance Prescribing Guidelines in the Registration of Business Establishments with Foreign Nationals in Davao City and other Purposes.

For the City Mayor:


WENDEL E. AVISADO
City Administrator

CRD - CMO		
RELEASED		
JAN 08 2008	10:10	✓
DATE	TIME	INITIAL
SP	SP	1-8-07

184-2-17

Republika ng Pilipinas
LUNGSOD NG DABAW
TANGGAPAN NG SANGGUNIANG PANLUNGSOD

November 23, 2007

RODRIGO R. DUTERTE
City Mayor
City of Davao

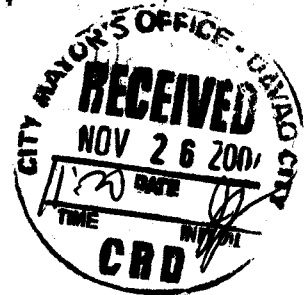
Sir:



EH 115
P# 446

Res. Logbook

2238



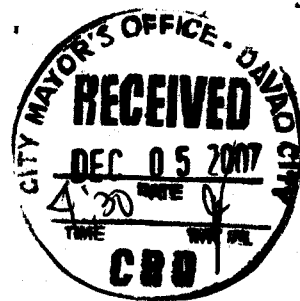
Pursuant to Sub-section 3, Paragraph C, Section 469, Article One, Title Five, Chapter 3, Book III and Section 54 of Book I Republic Act No. 7160, otherwise known as the Local Government Code of 1991, we are furnishing you a copy of Resolution No. 0411-07 and Ordinance No. 029-07, Series of 2007 of the Sangguniang Panlungsod for your information, guidance and appropriate action.

Very truly yours,

Z. Lopez

ZULEIKA T. LOPEZ
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

Republic of the Philippines
OFFICE OF THE CITY LEGAL OFFICER
City of Davao 440
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Ref. No. 131-07

SUBJECT: ORDINANCE NO. 029-07, SERIES OF 2007, KNOWN AS AN ORDINANCE PRESCRIBING GUIDELINES IN THE REGISTRATION OF BUSINESS ESTABLISHMENTS WITH FOREIGN NATIONALS IN DAVAO CITY AND OTHER PURPOSES.

1st INDORSEMENT
December 5, 2007

LEGAL OPINION
No. 303 Series 227

Respectfully forwarded to the Office of the City Mayor, through the Office of the City Administrator, both of this city, the above-cited subject with the information that the subject ordinance is in order and in accordance with law.

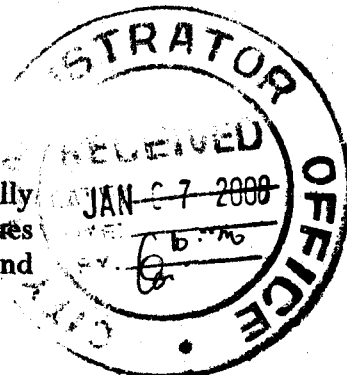
In view of the foregoing, this office recommends the approval of the subject ordinance.

RESPECTFULLY SUBMITTED.


OSMUNDO P. VILLANUEVA, JR.
Acting Asst. City Legal Officer

CERTIFICATION

This is to certify that this legal opinion was arrived at personally by the undersigned based on the facts and issues presented/submitted in relation to applicable laws and jurisprudence.




OSMUNDO P. VILLANUEVA, JR.

APPROVED:


J. MELCHOR V. QUITAIN
City Legal Officer

December 5, 2007
(date of approval)

Request for Legal Opinion Received: November 26, 2007
Referred to lawyer: November 27, 2007

